Westminster
Public Schools
Where Education is Personal

Westminster Public Schools

General Conditions of the Construction Agreement

Table of Contents

Section		Page
GC 1.00	Contract Documents and Definitions	4
GC 2.00	Reference Standards	5
GC 3.00	Drawings and Specifications	5
GC 4.00	Royalties, Patents, and Intellectual Property	6
GC 5.00	Items Included in the Contract Sum	6
GC 6.00	Execution, Correlation, Intent, and Interpretation of Contract Documents	6
GC 7.00	Materials, Labor, Temporary Facilities, and Storage	7
GC 8.00	Performance and Payment Bonds	7
GC 9.00	Permits, Licenses, and Compliance with Law	8
GC 10.00	Surveys, Benchmarks, Monuments, Stakes, and Measurements	8
GC 11.00	Concealed or Unknown Conditions	8
GC 12.00	Protection of Persons, Work, and Property	9
GC 13.00	Work in Existing or Occupied Facilities	9
GC 14.00	Contractor Superintendence and Supervision	9
GC 15.00	Substitutions	10
GC 16.00	Shop Drawings, Product Data, and Samples	10
GC 17.00	Allowances	11
GC 18.00	Procurement and Expediting Materials	11
GC 19.00	Blasting and Explosives	11
GC 20.00	Geotechnical and Site Information	11
GC 21.00	Hazardous Materials	11
GC 22.00	Existing Utilities	11
GC 23.00	Changes in the Work	12
GC 24.00	Claims for Additional Cost or Time	12
GC 25.00	Delays and Extensions of Time	12
GC 26.00	Access, Inspection, and Testing	13
GC 27.00	Correction of Defective or Nonconforming Work	14
GC 28.00	District's Right to Carry Out or Complete Work	14
GC 29.00	Termination	14
GC 30.00	Construction Schedule and Progress Reports	15
GC 31.00	Schedule of Values	15
GC 32.00	Applications for Payment and Payment	15
GC 33.00	Insurance	17
GC 34.00	Separate Contracts	18
GC 35.00	Subcontractors and Suppliers	18
GC 36.00	Relationship of Contractor and Subcontractors	19
GC 37.00	Contractors' Mutual Responsibility	19
GC 38.00	Cutting, Patching, and Excavating	19
GC 39.00	Contractor Personnel	19
GC 40.00	Cleaning and Site Maintenance	20
GC 41.00	Use of Premises and Site Security	20
GC 42.00	District Occupancy and Partial Use	20
GC 43.00	Temporary or Trial Use	20
GC 44.00	Testing, Startup, Commissioning, and Training	21
GC 45.00	Liquidated Damages for Delay in Completion	21
GC 46.00	Substantial Completion, Final Completion, and Final Payment	21
GC 47.00	Warranties on Portions of the Work	22
GC 48.00	Contractor's Project Guarantee After Completion	22
GC 49.00	Keys, Access Devices, Controls, and Miscellaneous Items	23
GC 50.00	Indemnification	23
GC 51.00	Labor Disputes	23
GC 52.00	Limitation of Actions	23
GC 53.00	Colorado Public Works Requirements	23
GC 54.00	Sales and Use Tax	24
GC 55.00	Liens, Claims, and Payment of Subcontractors	24
GC 56.00	District Inspection and Audit of Contractor's Records	24
GC 57.00	Background Checks and Premises Access	24

Section		Page
GC 58.00	Contractor Safety Responsibilities	24
GC 59.00	Asbestos, Lead, and Other Regulated Building Materials	25
GC 60.00	Architect or Design Professional Status and Authority	25
GC 61.00	Oral Statements	26
GC 62.00	Project Signage	26
GC 63.00	Historical, Archaeological, or Cultural Discoveries	26
GC 64.00	Assignment	26
GC 65.00	Time is of the Essence	26
GC 66.00	Disputes	26
GC 67.00	Survival	26
GC 68.00	Governing Law, Venue, and Governmental Immunity	26
GC 69.00	Prohibited Public School Contract Terms	26
GC 70.00	Entire Agreement, Severability, No Waiver, and Headings	27

GC 1.00 – CONTRACT DOCUMENTS AND DEFINITIONS

All Work shall be performed in accordance with the Contract Documents. The Contract Documents are complementary and together constitute the Agreement between Westminster Public Schools and the Contractor. No Contract Document shall be construed in isolation when another Contract Document reasonably bears upon the same subject.

1.01 Contract or Contract Documents

The 'Agreement,' 'Contract,' or 'Contract Documents' collectively mean, as applicable and as identified or incorporated by the project-specific Contract Documents: the solicitation and all addenda; the Contractor's accepted response and any accepted clarifications or modifications; the Award Letter and any Renewal Letter; the District's Purchase Order; any written Construction Agreement; these General Conditions; any Supplementary Conditions; the Scope of Work; Drawings and Specifications; approved Change Orders and written amendments; Notice to Proceed; performance and payment bonds; approved schedules and schedules of values; Architect or Design Professional certificates; and other documents expressly incorporated by reference. Contractor-generated forms, invoices, quotations, click-through terms, website terms, or other boilerplate shall not modify the Agreement unless expressly accepted in writing by an authorized District representative.

1.02 Owner or District

'Owner' or 'District' means Westminster Public Schools and its duly authorized representatives.

1.03 Contractor

'Contractor' means the person or entity identified as the successful Respondent and responsible for performance of the Work, including persons and entities for whose acts or omissions the Contractor is legally responsible.

1.04 Subcontractor

'Subcontractor' means a person or entity having a direct or indirect contract with the Contractor to perform any portion of the Work or furnish labor, materials, equipment, or services for the Project.

1.05 Architect or Design Professional

'Architect' or 'Design Professional' means the architect, engineer, consultant, or other design professional identified by the District for the Project. If no Architect or Design Professional is designated, references to the Architect shall mean the District's authorized project representative to the extent appropriate to the function described.

1.06 Notice to Contractor

Notice to the Contractor shall be in writing and delivered personally, by nationally recognized delivery service, by certified or registered mail, or by electronic transmission to the Contractor's designated representative when the Contract Documents authorize electronic notice. Notice is effective when received, unless the Agreement expressly provides otherwise.

1.07 Work

'Work' means the construction and services required by the Contract Documents, whether completed or partially completed, and includes all labor, materials, equipment, services, supervision, coordination, and other obligations provided or to be provided by the Contractor, Subcontractors, suppliers, and others for whom the Contractor is responsible.

1.08 Project

'Project' means the total construction, renovation, repair, installation, or improvement identified in the Contract Documents, of which the Work may be the whole or a part.

1.09 Final Completion

'Final Completion' means the date on which the Work has been fully completed in accordance with the Contract Documents, all punch-list and closeout requirements have been satisfied, required governmental approvals have been obtained, and the District has accepted the Work for its intended use in writing.

1.10 Substantial Completion

'Substantial Completion' means the stage in the progress of the Work when the Work, or a designated portion, is sufficiently complete in accordance with the Contract Documents so the District can occupy or utilize it for its intended use, subject only to minor corrective or incomplete items that do not materially interfere with such use. The Contractor shall submit a comprehensive list of incomplete or corrective items when requesting a determination of Substantial Completion. Failure to include an item does not relieve the Contractor of responsibility to complete the Work.

1.11 Drawings or Plans
'Drawings' or 'Plans' include drawings issued for bidding or construction, supplementary drawings, approved shop drawings, record drawings, sketches, and other graphic information issued or accepted for the Project.

1.12 Specifications
'Specifications' means the written technical requirements concerning materials, systems, equipment, workmanship, performance, and methods applicable to the Work.

1.13 Change Order
'Change Order' means a written instrument authorized by the District after formation of the Agreement that modifies the Work, Contract Sum, Contract Time, or other Contract requirement. No Change Order is effective unless approved in writing by an authorized District representative.

1.14 Day or Days
Unless otherwise stated, 'day' or 'days' means calendar days. If a stated deadline falls on a Saturday, Sunday, or legal holiday observed by the District, the deadline shall extend to the next District business day unless the Contract Documents expressly require otherwise.

1.15 Authorized District Representative
The District shall designate in writing the individual(s) authorized to administer the Agreement on behalf of the District. The authority of the Architect, Project Manager, District representative, or other designated individual shall be limited to the authority expressly granted by the District. No employee, consultant, Architect, Project Manager, or other representative of the District shall have authority to modify the Agreement, authorize additional compensation, extend the Contract Time, or direct additional compensable Work except as expressly authorized in writing by the District. The Contractor proceeds upon any unauthorized direction at its own risk.

GC 2.00 – REFERENCE STANDARDS

References to standards, codes, specifications, or publications of technical societies, trade associations, governmental authorities, or other organizations shall mean the edition required by applicable law or expressly identified in the Contract Documents. If no edition is identified, the edition in effect on the date the solicitation is issued shall apply, unless a later edition is required by law.

GC 3.00 – DRAWINGS AND SPECIFICATIONS

The Contractor shall use the Drawings and Specifications solely for performance of the Project and shall coordinate its Work with all requirements shown or reasonably inferable from them.

3.01 Ownership and Use
Drawings, Specifications, models, and other design documents furnished by the District or Design Professional remain the property of their respective owners. The Contractor may reproduce and use them only for the Project and shall not use them for other projects without written authorization.

3.02 Dimensions and Elevations
Figured dimensions and established elevations shall govern. The Contractor shall not scale Drawings where dimensions are provided and shall obtain clarification before performing Work for which necessary dimensions or elevations are missing or inconsistent.

3.03 Verification
Before ordering materials or performing Work, the Contractor shall verify field dimensions, elevations, quantities, existing conditions, and coordination requirements. The Contractor shall promptly report discrepancies, errors, or omissions to the Architect and District and shall not proceed with affected Work until written clarification is received.

3.04 Supplemental Information
The Architect may issue supplemental drawings, interpretations, or instructions consistent with the Contract Documents. The Contractor shall incorporate such information into the Work and shall promptly advise the District if it believes the information changes Contract Sum or Contract Time.

3.05 Record Documents
The Contractor shall maintain at the Project site or in the District-approved project management system a current record set of Drawings, Specifications, approved submittals, Change Orders, and other modifications showing actual

installed conditions. Record documents shall be updated throughout the Project and delivered to the District in the format required by the Contract Documents before Final Payment.

3.06 Laws and Regulations
If the Contractor observes that the Contract Documents conflict with applicable law, code, ordinance, rule, or regulation, it shall promptly notify the District and Architect in writing. Work knowingly performed contrary to applicable requirements without such notice and written direction shall be corrected at the Contractor's expense.

GC 4.00 – ROYALTIES, PATENTS, AND INTELLECTUAL PROPERTY

Unless otherwise stated, the Contractor shall pay all royalties and license fees necessary for materials, equipment, methods, software, or processes selected or furnished by the Contractor. To the fullest extent permitted by law, the Contractor shall defend and indemnify the District from claims of infringement arising from Contractor-selected products, processes, or materials, except to the extent the claimed infringement arises solely from a design or product specifically required by the District and the Contractor timely notified the District of a known concern.

GC 5.00 – ITEMS INCLUDED IN THE CONTRACT SUM

The Contract Sum includes all costs necessary for complete performance of the Work unless a cost is expressly identified in the Contract Documents as the District's responsibility.

5.01 District-Furnished Items
The District shall furnish only those items, services, permits, testing, utilities, or other responsibilities expressly identified as District-furnished in the Contract Documents.

5.02 Contractor-Furnished Items
Except as expressly excluded, the Contract Sum includes all labor, supervision, materials, equipment, tools, transportation, temporary facilities, storage, protection, permits, licenses, fees, overhead, profit, insurance, bonds, taxes not exempted, cleanup, closeout, warranties, and other costs necessary to complete the Work within the Contract Time. The Contractor is responsible for risks ordinarily associated with performing the Work and for costs resulting from its failure to properly investigate, coordinate, schedule, protect, or perform the Work.

GC 6.00 – EXECUTION, CORRELATION, INTENT, AND INTERPRETATION OF CONTRACT DOCUMENTS

The Contractor's acceptance of the Agreement constitutes its representation that it has reviewed the Contract Documents, visited or otherwise reasonably investigated the Project site as required by the solicitation, and correlated its observations with the requirements of the Work.

6.01 Authorization to Proceed
The Contractor shall not commence Work or incur costs chargeable to the District before receipt of the District's Purchase Order and any required Notice to Proceed or other written authorization. Work performed before authorization is at the Contractor's risk unless expressly approved in writing by the District.

6.02 Correlation
The Contractor shall study and compare the Contract Documents and shall promptly report discovered errors, inconsistencies, omissions, or conflicts before proceeding with affected Work.

6.03 Intent
The Contract Documents are intended to include all items reasonably necessary for proper execution and completion of the Work. Work shown on the Drawings and not described in the Specifications, or described in the Specifications and not shown on the Drawings, shall be performed as though required by both when reasonably necessary to produce the intended result.

6.04 Requests for Interpretation
Questions concerning interpretation shall be submitted in writing through the process established by the District. Oral interpretations do not modify the Contract Documents. The Contractor shall allow reasonable time for response and shall not proceed with affected Work when clarification is reasonably necessary.

6.05 Order of Precedence
The Contract Documents are intended to be complementary and shall be interpreted together to give effect to all provisions applicable to the Work. In the event of an irreconcilable conflict, discrepancy, or inconsistency among the Contract Documents, the order of precedence expressly established in the project-specific solicitation, Supplementary

Conditions, or other project-specific Contract Document shall control. If no project-specific order of precedence is expressly established, the following order of precedence shall apply: (1) Change Orders and other authorized written modifications executed after establishment of the Agreement, with the most recently executed document controlling to the extent of the modification; (2) Addenda issued by the District prior to the response submission deadline, with the most recently issued Addendum controlling to the extent of the modification; (3) Written Construction Agreement or project-specific Supplementary Conditions, if any; (4) These General Conditions; (5) Project-specific Scope of Work; (6) Specifications; (7) Drawings; (8) Written clarifications, exceptions, or negotiated modifications expressly accepted by the District; (9) District Award Letter or other written award document; (10) Contractor's accepted response; and (11) District Purchase Order. A document lower in priority shall supplement, but shall not supersede, a higher-priority document unless expressly stated in an authorized written modification. Nothing contained in a Contractor-generated document shall modify or supersede a District requirement unless expressly accepted in writing by an authorized District representative.

GC 7.00 – MATERIALS, LABOR, TEMPORARY FACILITIES, AND STORAGE

Unless otherwise agreed in writing, the Contractor shall provide and pay for all labor, materials, tools, equipment, machinery, transportation, temporary facilities, utilities, storage, protection, and services necessary to properly execute and complete the Work.

7.01 Materials and Workmanship

Unless otherwise specified, materials shall be new and of good quality, and workmanship shall be performed by appropriately skilled personnel in a first-class and workmanlike manner. The Contractor shall provide evidence of quality and samples when required.

7.02 Prohibited Materials

No asbestos-containing material, lead-containing material, or other hazardous or regulated material shall be furnished, installed, incorporated into, or otherwise used in the Work, except where a specific material is expressly required by the Contract Documents and its use is permitted by applicable law and approved in writing by the District. Upon request, the Contractor shall provide product data, Safety Data Sheets, manufacturer certifications, or other documentation reasonably required by the District to verify compliance with this requirement. Any prohibited material furnished or installed in violation of this requirement shall be removed and replaced by the Contractor at no additional cost to the District.

7.03 Temporary Utilities

The Contractor shall provide temporary power, lighting, water, heat, ventilation, and other temporary services necessary for the Work unless the Contract Documents assign a specific service to the District. Temporary services shall comply with applicable laws and be installed and operated safely.

7.04 Sanitary Facilities

The Contractor shall provide and maintain adequate sanitary facilities for its personnel and Subcontractors unless the District expressly authorizes use of existing District facilities. District student or staff restrooms shall not be used without prior written approval.

7.05 Storage and Security

The Contractor shall provide secure, weather-protected storage appropriate for materials and equipment and shall protect stored items from theft, damage, contamination, and deterioration. Storage shall be limited to locations approved by the District.

7.06 Temporary Offices

When required by the Contract Documents, the Contractor shall provide suitable temporary office facilities for Project administration and for reasonable use by the District and Architect.

7.07 Removal

Upon completion or when directed, the Contractor shall remove temporary facilities, surplus materials, rubbish, and equipment and restore affected areas to a condition acceptable to the District.

GC 8.00 – PERFORMANCE AND PAYMENT BONDS

When required by applicable law or the Contract Documents, the Contractor shall furnish performance and payment bonds in the form and amount required by the District before commencing Work.

8.01 Required Bonds

For construction contracts exceeding fifty thousand dollars ($50,000), or when otherwise required by applicable law or the Contract Documents, the Contractor shall furnish a Performance Bond and Payment Bond, each in an amount equal to one hundred percent (100%) of the Contract Sum, prior to commencement of the Work. The bonds shall be issued by a surety authorized to conduct business in the State of Colorado and acceptable to the District. The Performance Bond shall guarantee the Contractor's faithful performance and completion of the Work in accordance with the Contract Documents. The Payment Bond shall guarantee payment of subcontractors, laborers, material suppliers, and other persons entitled to payment for labor, materials, or services furnished in connection with the Work. The Contractor shall maintain the bonds in full force and effect as required by applicable law and the Contract Documents.

8.02 Surety
Bonds shall be issued by a surety authorized to transact business in Colorado and acceptable to the District. Bond premiums shall be included in the Contract Sum unless otherwise stated. If a surety becomes unacceptable or loses authority to do business in Colorado, the Contractor shall promptly furnish replacement bonds.

8.03 Warranty Obligations
To the extent stated in the bond form, the performance bond shall secure the Contractor's correction and warranty obligations following completion of the Work.

GC 9.00 – PERMITS, LICENSES, AND COMPLIANCE WITH LAW

The Contractor shall obtain and pay for permits, licenses, inspections, and governmental fees assigned to it by the Contract Documents and shall comply with all applicable federal, state, and local laws, codes, ordinances, rules, and regulations.

9.01 Permits and Inspections
The Contractor shall timely obtain required trade permits and inspections and coordinate with authorities having jurisdiction. Responsibility for the primary building permit shall be as stated in the project-specific Contract Documents.

9.02 Compliance
The Contractor and all Subcontractors shall comply with requirements applicable to construction, employment, safety, environmental protection, licensing, and payment of labor. If a Contract requirement conflicts with law, the Contractor shall promptly notify the District before proceeding.

9.03 Fines and Penalties
The Contractor is responsible for fines, penalties, reinspection fees, and corrective costs resulting from its violation of law or failure to obtain permits or inspections for which it is responsible.

GC 10.00 – SURVEYS, BENCHMARKS, MONUMENTS, STAKES, AND MEASUREMENTS

The Contractor shall use surveys and site information furnished by the District as provided in the Contract Documents and shall be responsible for construction layout, verification, and preservation of established controls.

10.01 Layout
The Contractor shall accurately lay out the Work and establish and maintain benchmarks, reference points, and control lines necessary for construction.

10.02 Preservation
The Contractor shall protect monuments, property markers, benchmarks, and stakes and shall replace at its expense those disturbed or destroyed by its operations unless removal was expressly required by the Contract Documents.

10.03 Measurements
Before ordering materials or performing Work, the Contractor shall verify measurements and report discrepancies to the Architect and District before proceeding.

GC 11.00 – CONCEALED OR UNKNOWN CONDITIONS

If the Contractor encounters subsurface or concealed physical conditions materially different from those indicated in the Contract Documents, or unknown physical conditions of an unusual nature materially different from those ordinarily encountered in Work of the character provided for, the Contractor shall promptly stop affected Work and notify the District and Architect in writing before disturbing the condition. The District will investigate and, if an equitable adjustment is warranted, the Contract Sum or Contract Time shall be modified by written Change Order. No

adjustment shall be allowed if the Contractor fails to provide timely notice or disturbs the condition before the District has a reasonable opportunity to investigate, except where immediate action is necessary to protect persons or property.

GC 12.00 – PROTECTION OF PERSONS, WORK, AND PROPERTY

The Contractor is solely responsible for initiating, maintaining, and supervising safety precautions and programs in connection with the Work.

12.01 Exits and Barricades

Required building exits, fire lanes, emergency access, and accessible routes shall remain safe and unobstructed unless an alternate arrangement is approved by the District and authorities having jurisdiction. The Contractor shall provide barricades, fencing, signage, and traffic control necessary to separate construction from students, staff, visitors, and the public.

12.02 Precautions

The Contractor shall protect persons, the Work, materials, equipment, existing buildings, landscaping, pavement, utilities, and adjacent property from injury, loss, or damage arising from the Work.

12.03 OSHA

The Contractor shall comply with OSHA and all other applicable safety requirements and shall designate a competent person or safety representative with authority to enforce safety requirements.

12.04 Damage

The Contractor shall promptly repair or replace, at its expense, property damaged by the Contractor, its Subcontractors, or persons for whom it is responsible, except to the extent damage is caused solely by the District or another party for whom the Contractor is not responsible.

12.05 Emergencies

In an emergency threatening persons or property, the Contractor shall act without special instruction to prevent injury, loss, or damage and shall immediately notify the District and Architect. Any adjustment in Contract Sum or Contract Time shall be determined under the Change Order provisions.

GC 13.00 – WORK IN EXISTING OR OCCUPIED FACILITIES

Because District facilities may remain occupied and operational during construction, protection of students, staff, visitors, and District operations is a material requirement of the Agreement.

13.01 Separation and Protection

The Contractor shall provide dustproof partitions, barriers, negative-air or ventilation controls, temporary protection, and other measures reasonably necessary to isolate the Work and prevent exposure to dust, fumes, noise, debris, hazardous substances, and construction hazards.

13.02 Safe Access

The Contractor shall maintain safe, clearly marked pathways and access to occupied portions of District property and shall coordinate closures with the District in advance.

13.03 Scheduling

Work that may materially disrupt instruction, testing, building operations, utilities, life-safety systems, or access shall be scheduled in advance with the District and, when reasonably practicable, during non-school hours, breaks, or other periods designated by the District.

13.04 Existing Systems

The Contractor shall protect and maintain existing fire alarm, security, public address, controls, HVAC, irrigation, technology, utility, and other systems serving occupied areas. Shutdowns shall occur only with prior District approval and appropriate temporary measures.

13.05 Conduct

The Contractor shall minimize unnecessary noise, odors, dust, vibration, and interference with District activities and shall comply with District security and access requirements.

GC 14.00 – CONTRACTOR SUPERINTENDENCE AND SUPERVISION

The Contractor shall provide competent supervision and shall remain solely responsible for construction means, methods, techniques, sequences, procedures, coordination, and safety.

14.01 Superintendent
A competent superintendent satisfactory to the District shall be present whenever Work is in progress unless otherwise approved. The superintendent shall have authority to act for the Contractor. Key personnel identified in the accepted response are material to performance and shall not be replaced without prior notice to and approval by the District, except in an emergency or separation from employment.

14.02 Coordination
The Contractor shall coordinate all portions of the Work, Subcontractors, deliveries, inspections, temporary facilities, and sequencing to achieve proper and timely completion.

14.03 Layout and Engineering
The Contractor shall provide construction layout, field engineering, and coordination necessary to establish lines, levels, and locations for the Work unless expressly assigned to another party.

14.04 Quality Control
The Contractor shall be solely responsible for establishing, implementing, and maintaining appropriate quality-control procedures necessary to ensure that the Work performed by the Contractor and its Subcontractors conforms to the Contract Documents. The Contractor shall perform such inspections, examinations, testing, and other quality-control activities as are necessary or required by the Contract Documents to verify compliance with applicable requirements.

14.05 Responsibility
Review, observation, inspection, testing, approval, or acceptance by the District, Architect, or any consultant shall not relieve the Contractor of responsibility for supervision, coordination, safety, quality control, or the quality, accuracy, completeness, and conformity of the Work with the Contract Documents, including responsibility for correction of defective or nonconforming Work.

GC 15.00 – SUBSTITUTIONS

Materials, products, equipment, systems, and manufacturers identified in the Contract Documents shall be furnished unless an alternate or substitution is approved in writing by the District. Requests for substitution shall identify the proposed item, reason for substitution, differences from the specified item, effects on schedule, warranties, performance, maintenance, and other Work, and any credit or additional cost. The Contractor shall bear costs of redesign, coordination, or rework caused by a substitution unless otherwise agreed. Any savings resulting from an approved substitution shall accrue to the District. Approval of a substitution does not relieve the Contractor from responsibility for suitability, performance, coordination, or warranty obligations.

GC 16.00 – SHOP DRAWINGS, PRODUCT DATA, AND SAMPLES

The Contractor shall prepare, review, approve, and submit shop drawings, product data, samples, and other submittals required by the Contract Documents in a sequence that will not delay the Work.

16.01 Contractor Review
By submitting a submittal, the Contractor represents that it has verified field measurements, quantities, dimensions, materials, catalog numbers, coordination, and compliance with the Contract Documents and has identified deviations in writing.

16.02 Architect Review
Review by the Architect or District is limited to conformance with design intent and Contract requirements and does not relieve the Contractor of responsibility for errors, omissions, dimensions, means and methods, safety, or deviations not specifically disclosed and approved.

16.03 Resubmittals
The Contractor shall make required corrections and resubmit promptly. Revisions other than those requested shall be clearly identified.

16.04 No Work Before Approval
Work requiring an approved submittal shall not be fabricated or installed before approval unless expressly authorized in writing. Work shall conform to approved submittals and the Contract Documents.

16.05 Format
Submittals shall be provided electronically unless the District or Architect requires physical samples or another format.

GC 17.00 – ALLOWANCES
The Contractor shall include in the Contract Sum all allowances identified in the Contract Documents. Allowances shall be used only for the purposes stated and only as authorized by the District. When actual authorized cost is more or less than the allowance, the Contract Sum shall be adjusted by Change Order. Unless otherwise stated, the Contractor's overhead and profit associated with allowance Work shall be included in the Contract Sum and shall not be added again when the allowance is reconciled.

GC 18.00 – PROCUREMENT AND EXPEDITING MATERIALS
The Contractor shall promptly procure materials, equipment, and supplies necessary to meet the approved schedule, giving particular attention to long-lead items. Upon request, the Contractor shall provide procurement logs, purchase orders, delivery dates, and other evidence of timely procurement. Failure to timely order or expedite items that reasonably could have been anticipated shall not entitle the Contractor to additional time or compensation.

GC 19.00 – BLASTING AND EXPLOSIVES
No blasting or explosives shall be used on District property without the District's express prior written approval and all permits and approvals required by law. Powder-actuated fastening tools used in accordance with law and manufacturer requirements are not considered blasting for purposes of this section. The Contractor shall be responsible for all safety, notice, monitoring, insurance, and damage arising from any approved blasting operation.

GC 20.00 – GEOTECHNICAL AND SITE INFORMATION
Geotechnical reports, surveys, utility information, environmental reports, or other site information furnished by the District are provided for the purposes and subject to the limitations stated in those documents and the Contract Documents. The Contractor shall review information made available to it and shall not rely upon it beyond its stated purpose. The Contractor remains responsible for its own means, methods, temporary conditions, and reasonable site investigation, subject to GC 11.00 concerning concealed or unknown conditions.

GC 21.00 – HAZARDOUS MATERIALS
Unless the Contract Documents expressly include hazardous-material abatement within the Contractor's Work, the Contractor is not responsible for pre-existing hazardous materials that were not introduced by the Contractor.

21.01 Discovery
Upon discovering or reasonably suspecting asbestos, lead, PCBs, mold, contaminated soil, hazardous waste, or other regulated material not identified for disturbance, the Contractor shall immediately stop affected Work, secure the area, and notify the District in writing.

21.02 Authorization
The Contractor shall not disturb suspected hazardous material until the District provides written direction. A Contractor that proceeds without authorization assumes responsibility for resulting contamination, cleanup, exposure, and damage to the extent caused by its actions.

21.03 Contractor-Caused Conditions
The Contractor is responsible for hazardous materials it brings to the Project and for spills, releases, or contamination caused by the Contractor or its Subcontractors.

21.04 District Action
The District will determine how pre-existing hazardous materials outside the Contractor's scope will be evaluated, managed, or abated. Adjustments to Contract Sum or Contract Time, if any, shall be made by Change Order.

21.05 Management Plans
The Contractor shall review and comply with applicable District asbestos management plans, lead records, and other environmental requirements before disturbing building materials.

GC 22.00 – EXISTING UTILITIES
The Contractor shall protect existing utilities and shall verify utility locations before excavation or other Work that may affect them.

22.01 Utility Locates

The Contractor shall obtain required utility locates and coordinate with utility owners. Locations shown in Contract Documents are not guaranteed unless expressly stated.

22.02 Active Utilities
Active utilities shall remain in service unless shutdown is approved in advance. The Contractor shall promptly repair utility damage caused by its operations and shall immediately report any interruption affecting safety or District operations.

22.03 Unknown Utilities
If an unknown utility is encountered, the Contractor shall stop affected Work and notify the District and Architect before proceeding, except as necessary to address an emergency.

22.04 Abandoned Utilities
Abandoned utilities shall be handled as required by the Contract Documents and applicable law. Locations of abandoned utilities encountered shall be recorded in the record documents.

GC 23.00 – CHANGES IN THE WORK

The District may order additions, deletions, or revisions within the general scope of the Project without invalidating the Agreement. Changes affecting Contract Sum or Contract Time must be authorized in writing.

23.01 Change Orders
A Change Order shall describe the change and any adjustment to Contract Sum and Contract Time. The Contractor shall not perform extra or changed Work expecting additional compensation unless authorized in writing, except emergency Work necessary to protect persons or property.

23.02 Minor Changes
The District or Architect may issue written minor changes that do not affect Contract Sum or Contract Time and are consistent with the Contract Documents. The Contractor shall promptly notify the District before performing a purported minor change if it believes the change affects cost or time.

23.03 Pricing
The cost or credit for a change shall be determined by an agreed lump sum, applicable unit prices, or documented actual cost plus an agreed markup. Change proposals shall include sufficient detail to evaluate labor, materials, equipment, Subcontractor costs, taxes, insurance, bonds, overhead, profit, and schedule impact.

23.04 Markup
Unless a different markup is stated in the solicitation or Supplementary Conditions, the combined markup for Contractor and all tiers of Subcontractors on a change shall not exceed fifteen percent (15%) of the allowable direct cost of the changed Work.

23.05 Force Account
When the parties cannot agree on price before changed Work must proceed, the District may direct the Contractor in writing to proceed on a time-and-material or force-account basis. The Contractor shall maintain daily records of labor, materials, equipment, and other allowable costs and obtain District verification when reasonably practicable.

23.06 Appropriation
No District representative may authorize additional compensable Work that causes the District's obligation to exceed lawfully authorized or encumbered funds. The Contractor shall not rely on oral direction to exceed the authorized Contract Sum.

GC 24.00 – CLAIMS FOR ADDITIONAL COST OR TIME

If the Contractor believes an instruction, condition, event, or action entitles it to additional compensation or Contract Time, it shall provide written notice to the District and Architect within ten (10) days after the event giving rise to the claim, and before proceeding with affected extra Work when practicable. The notice shall describe the basis of the claim, estimated cost and time effect, and steps being taken to mitigate impact. Failure to provide timely notice may waive the claim to the extent the District is prejudiced by the lack of notice. No adjustment is effective without a written Change Order or amendment authorized by the District.

GC 25.00 – DELAYS AND EXTENSIONS OF TIME

Contract Time may be extended only by written Change Order or other written amendment authorized by the District.

25.01 Excusable Delay and Force Majeure
An extension of Contract Time may be considered for delay to the critical path caused by District-directed changes; acts or omissions of the District or Architect; unforeseeable labor disputes; fire; flood; unavoidable casualty; epidemic or pandemic restrictions; acts of terrorism, war, or civil unrest; governmental actions; unusually severe weather; or other events beyond the Contractor's reasonable control, without its fault or negligence, and that could not reasonably have been avoided or mitigated.

25.02 Notice
The Contractor shall provide written notice of a claimed delay within seven (7) days after the occurrence begins, identify the affected critical-path activities, and provide supporting schedule analysis. Continuing delays shall be updated as reasonably requested.

25.03 Weather
The Contractor shall account in its Project schedule for normal and reasonably foreseeable weather conditions typical for the Project location and season, including reasonable weather-related impacts to construction activities. Normal seasonal weather and reasonably foreseeable weather-related delays shall not constitute grounds for an extension of Contract Time. An extension of Contract Time for weather may be considered only when weather conditions are unusually severe for the Project location and season, materially affect critical-path Work, and could not reasonably have been anticipated, avoided, or mitigated by the Contractor. The Contractor shall provide objective weather data, schedule analysis, and other supporting documentation reasonably requested by the District to substantiate any claimed weather delay.

25.04 Mitigation
The Contractor shall use reasonable efforts to mitigate delay, re-sequence Work, and recover lost time. The District may require a recovery schedule when progress falls materially behind the approved schedule.

25.05 Compensation
An extension of Contract Time does not automatically entitle the Contractor to additional compensation. Compensation for delay, if any, must be expressly authorized by written Change Order and supported by documented costs. Nothing in this provision limits rights that cannot lawfully be waived.

25.06 Suspension Protection
When Work is suspended, the Contractor shall protect the Work, materials, equipment, and site from damage and shall resume promptly when directed.

GC 26.00 – ACCESS, INSPECTION, AND TESTING
The District, Architect, consultants, authorities having jurisdiction, and their authorized representatives shall have reasonable access to the Work wherever located.

26.01 Notice of Inspection
The Contractor shall provide timely notice when Work is ready for required inspection or testing and shall obtain certificates and approvals for which it is responsible.

26.02 Covered Work
Work covered before required inspection or approval shall be uncovered and restored at the Contractor’s expense if directed.

26.03 Reinspection
If reinspection or additional testing shows Work is nonconforming, the Contractor shall bear the associated costs. If Work is conforming and the additional inspection was not required because of Contractor fault, the District shall bear reasonable direct costs as appropriate.

26.04 Testing and Special Inspections
The Contractor shall coordinate all testing and special or third-party inspections required by the Contract Documents. Responsibility for providing and paying for testing and special inspections shall be as assigned in the project-specific Contract Documents. Testing or special inspections identified as the District's responsibility will be provided by the District or its designated consultant. The Contractor shall provide reasonable notice, access, coordination, and assistance necessary for such testing and inspections. Costs of retesting or reinspection necessitated by defective, deficient, or nonconforming Work shall be borne by the Contractor.

GC 27.00 – CORRECTION OF DEFECTIVE OR NONCONFORMING WORK

The District or Architect may reject Work that is defective or does not conform to the Contract Documents.

27.01 Correction

The Contractor shall promptly correct rejected Work, whether discovered before or after completion, and shall bear costs of removal, replacement, retesting, reinspection, professional services, and repair of adjacent Work caused by the correction.

27.02 Removal

Rejected materials or Work shall be removed from the site when directed. If the Contractor fails to do so within a reasonable time after written notice, the District may remove, store, dispose of, or otherwise address the rejected Work at the Contractor's expense.

27.03 After Final Payment

Final payment does not relieve the Contractor of responsibility for defective materials, workmanship, warranties, latent defects, or other obligations that survive completion.

27.04 Failure to Correct

If the Contractor fails to correct defective or nonconforming Work after reasonable notice, the District may correct it and recover or deduct the reasonable cost, without waiving other remedies.

27.05 Acceptance With Deduction

If the District elects to accept nonconforming Work, the Contract Sum may be reduced by an equitable amount reflecting diminished value, anticipated correction cost, or other resulting loss.

GC 28.00 – DISTRICT'S RIGHT TO CARRY OUT OR COMPLETE WORK

If the Contractor neglects to prosecute the Work properly or fails to perform a requirement of the Contract Documents, the District may, after three (3) working days' written notice unless an emergency requires immediate action, correct the deficiency or have others do so and deduct the reasonable cost from amounts due or recover the cost from the Contractor. Such action does not relieve the Contractor of its obligations and does not constitute a waiver of default.

28.01 Suspension of Work

The District may, by written notice to the Contractor, suspend all or any portion of the Work for such period as the District determines necessary or appropriate. Upon receipt of notice, the Contractor shall immediately suspend the affected Work and take reasonable measures to protect and secure the Work, materials, equipment, and Project site. If the suspension is not attributable to the Contractor and results in a demonstrable impact to the critical path or reasonable additional cost, the Contractor may submit a request for adjustment in accordance with the claims and Change Order provisions of the Contract Documents. No adjustment shall be allowed for a suspension resulting from the Contractor's failure to comply with the Contract Documents, applicable law, safety requirements, or other obligations under the Agreement.

GC 29.00 – TERMINATION

The District's termination rights are cumulative with all other remedies.

29.01 Termination for Cause

The District may terminate the Agreement for cause if the Contractor materially breaches the Agreement, fails to supply sufficient skilled workers, supervision, materials, or equipment; fails to timely pay Subcontractors or suppliers; disregards law or written directives; abandons the Work; becomes insolvent to the extent performance is materially threatened; or otherwise fails to prosecute the Work diligently. Except when immediate action is reasonably necessary to protect persons, property, or the Project, the District will provide written notice and a reasonable opportunity to cure. Upon termination, the District may take possession of materials and equipment intended for the Work to the extent permitted by law and complete the Work by reasonable means. The Contractor is liable for completion costs and damages exceeding the unpaid Contract balance.

29.02 Termination for Convenience

The District may terminate all or part of the Agreement for convenience upon written notice. The Contractor shall be paid for Work properly performed and accepted through the effective date, reasonable demobilization costs authorized by the District, and other amounts expressly allowed by the Agreement. The Contractor shall not be entitled to anticipated profit on unperformed Work.

29.03 Funding and Non-Appropriation
The District's obligations are subject to lawful appropriation and budgeting. Any obligation that would constitute a multiple-fiscal-year financial obligation in violation of C.R.S. § 22-44-115(1) shall be null and void, and no District funds shall be expended for such obligation.

29.04 Transition
Upon termination, the Contractor shall protect the Work, deliver District property and Project records, assign subcontracts or purchase orders when directed and legally permissible, and cooperate in an orderly transition.

GC 30.00 – CONSTRUCTION SCHEDULE AND PROGRESS REPORTS

Time is a material requirement of the Agreement. The Contractor shall plan, schedule, coordinate, and prosecute the Work to achieve required milestones and completion dates.

30.01 Baseline Schedule
Within ten (10) days after award or within another period stated by the District, the Contractor shall submit a detailed construction schedule in a format acceptable to the District. The schedule shall identify major activities, sequencing, procurement, submittals, inspections, commissioning, training, milestones, Substantial Completion, and Final Completion.

30.02 Updates
The Contractor shall update the schedule at least monthly and whenever actual progress materially varies from the approved schedule. Updates shall identify actual progress, changes, delays, critical path, and corrective actions.

30.03 Progress Reports
Each Application for Payment shall include a current progress report and schedule update unless waived by the District. The District may require photographs, procurement logs, submittal logs, RFI logs, Change Order logs, and other reasonable progress information.

30.04 Recovery Schedule
If progress falls materially behind through causes within the Contractor's control, the District may require a recovery schedule and reasonable additional measures at no additional cost to the District.

30.05 District Operations
The Contractor shall schedule Work to minimize disruption to schools and District operations. Utility interruptions, high-noise Work, shutdowns, access restrictions, and Work affecting occupied areas shall be coordinated in advance with the District.

30.06 No Payment Without Required Schedule
The District may reject or withhold processing of an Application for Payment that is not accompanied by required schedule and progress documentation.

GC 31.00 – SCHEDULE OF VALUES

Before the first Application for Payment, the Contractor shall submit a complete Schedule of Values allocating the Contract Sum among major portions of the Work in sufficient detail for evaluation of progress payments. The Schedule of Values shall separately identify labor and material where requested and shall include the Contractor's appropriate allocation of overhead and profit. The Schedule of Values is subject to District and Architect review and shall not be unreasonably front-loaded. Once accepted, it shall be used as the basis for Applications for Payment and may be revised only with District approval.

GC 32.00 – APPLICATIONS FOR PAYMENT AND PAYMENT

The District shall establish applicable billing procedures and shall pay the Contractor for Work satisfactorily performed and accepted in accordance with the Agreement. The District's standard payment terms are Net 30, subject to any different payment timing required by applicable Colorado public-works law.

32.01 Applications for Payment
The Contractor shall submit Applications for Payment in the form, manner, and frequency established by the District and in accordance with the Contract Documents. Each Application for Payment shall be based upon the approved Schedule of Values and shall identify the Work performed, materials and equipment incorporated into the Work or properly stored, approved Change Orders, previous payments, retainage, and the amount currently requested. Each

Application for Payment shall be complete and accurate and shall include sufficient supporting documentation to substantiate the amount requested. Supporting documentation shall include, as applicable, the Schedule of Values, updated Project schedule, subcontractor and supplier invoices, applicable lien or claim releases, documentation supporting stored materials, approved Change Orders, and other documentation reasonably required by the District or Architect to substantiate the amount requested. The District may return an incomplete or unsupported Application for Payment without approval or payment. Submission or review of an Application for Payment shall not constitute acceptance of defective or nonconforming Work or waive any right or remedy of the District under the Contract Documents.

32.02 Certification and Review
When an Architect is engaged, the Architect may review and certify Applications for Payment. Architect certification does not obligate the District to pay an amount that is disputed, unsupported, unauthorized, or otherwise subject to withholding under the Contract Documents.

32.03 Net 30
Unless otherwise expressly required by law or agreed in writing, payment is due within thirty (30) days following the District's receipt of a complete and accurate Application for Payment or invoice and acceptance of the applicable Work, whichever occurs later. Advance payment is not permitted unless expressly authorized in writing by the District.

32.04 Stored Materials
The Contractor may include in an Application for Payment the value of materials or equipment not yet incorporated into the Work when such materials or equipment have been delivered and suitably stored at the Project site or, with the District's prior written approval, at another location. Payment for stored materials or equipment shall be conditioned upon the Contractor providing documentation satisfactory to the District establishing the value of the materials or equipment and the District's interest therein. For materials or equipment stored off-site, the Contractor shall provide, as applicable, bills of sale, supplier invoices, photographs, certificates, or other evidence of insurance, identification of the storage location, and documentation demonstrating that the materials or equipment have been specifically designated for the Project and are adequately protected from loss, theft, or damage. The Contractor shall also provide evidence of arrangements for transportation and delivery to the Project site when requested by the District. Payment for stored materials or equipment shall not relieve the Contractor of responsibility for their care, custody, protection, transportation, installation, or incorporation into the Work. The Contractor shall remain responsible for any loss, theft, damage, deterioration, or other casualty affecting such materials or equipment until responsibility passes to the District in accordance with the Contract Documents. The District may decline payment for stored materials or equipment when the Contractor has not provided sufficient documentation or when the District determines that the materials or equipment are not adequately identified, insured, protected, or available for incorporation into the Work.

32.05 Retainage
Unless otherwise provided in the Contract Documents or required by applicable law, payments shall be made based upon the value of Work satisfactorily performed and materials properly stored, less five percent (5%) retainage and less the aggregate amount of previous payments. Retainage shall be withheld until completion and acceptance of the Work, subject to any reduction, release, substitution of securities, or other requirements permitted or required by applicable Colorado law.

32.06 Title
To the extent paid for by the District, title to Work, materials, and equipment covered by an Application for Payment shall pass to the District free and clear of liens, claims, security interests, and encumbrances, without relieving the Contractor of responsibility for protection, correction, or completion.

32.07 Payments Withheld
The District may withhold payment, in whole or in part, and the Architect may decline to certify or may modify or withdraw a previous certification for payment, to the extent reasonably necessary to protect the District from loss or potential loss resulting from:

a. Defective, deficient, or nonconforming Work that has not been corrected;
b. Claims filed, or reasonable evidence indicating the probable filing of claims, arising from the Work;
c. Failure of the Contractor to make proper and timely payments to Subcontractors, suppliers, laborers, or others furnishing labor, materials, equipment, or services for the Work;
d. Reasonable evidence that the remaining unpaid balance of the Contract Sum is insufficient to complete the Work in accordance with the Contract Documents;

e. Damage caused by the Contractor or its Subcontractors to the District, another contractor, the Work, or other property;
f. Failure of the Contractor to perform the Work in a timely manner or in accordance with the approved Project schedule, including failure to provide a required recovery schedule;
g. Failure of the Contractor to submit required documentation, including, as applicable, Applications for Payment, updated Project schedules, progress reports, Schedule of Values, lien or claim releases, Subcontractor or supplier documentation, or other documents required by the Contract Documents;
h. Failure of the Contractor to comply with any material requirement of the Contract Documents; or
i. Any other circumstance for which withholding payment is authorized by the Contract Documents or applicable law.

The District shall not withhold amounts greater than reasonably necessary to protect against the identified loss, claim, deficiency, or noncompliance. When the basis for withholding has been satisfactorily resolved, the District shall release amounts no longer reasonably necessary to protect the District, subject to the applicable payment terms and requirements of the Contract Documents.

32.08 Good-Faith Disputes and Overpayments
No payment obligation arises for an amount subject to a good-faith dispute until resolved. Incorrect or overpayments resulting from error, omission, misrepresentation, or improper charge may be recovered by deduction from later payments or other lawful means.

32.09 Final Settlement
Following Final Completion and acceptance of the Work, final settlement for the Project shall be advertised and administered in accordance with applicable Colorado law. On or after the date established for final settlement, and after the Contractor has submitted all required closeout documentation and written confirmation regarding outstanding claims, the District shall process final payment, including release of retainage, subject to the requirements of the Contract Documents and applicable law. If, prior to final payment, the District receives a claim for unpaid labor, materials, supplies, equipment, or other amounts for which withholding is authorized or required by applicable law, the District may withhold from amounts otherwise due to the Contractor sufficient funds, if available, to protect against or satisfy the claim. Such funds shall remain withheld until the claim is paid, withdrawn, released, otherwise resolved, or until the District is authorized or required to release the funds in accordance with applicable law. Resolution or withdrawal of a claim shall be evidenced by documentation satisfactory to the District, including, as applicable, a receipt or release of payment in full, withdrawal of the claim, or other documentation executed by the claimant or its authorized representative. If an action is commenced to enforce an unpaid claim, the District may continue to withhold amounts associated with the claim for the period and in the manner authorized or required by applicable Colorado law. Any amounts not subject to a properly asserted or continuing claim shall be released to the Contractor when required by law. The Contractor shall remain responsible for all amounts lawfully due to subcontractors, suppliers, laborers, and other persons furnishing labor, materials, equipment, or services for the Project. Final payment by the District shall not relieve the Contractor of any obligation to satisfy such amounts or any other obligation that survives Final Completion or final payment. If applicable Colorado statutory requirements governing final settlement, notice, claims, withholding, or release of funds are amended during performance of the Agreement, the then-current statutory requirements shall govern.

32.10 No Acceptance by Payment
Progress or final payment does not constitute acceptance of defective or nonconforming Work and does not waive District rights or remedies.

GC 33.00 – INSURANCE
The Contractor shall obtain and maintain, at its own expense, and shall ensure that each Subcontractor, as applicable, obtains and maintains, insurance appropriate to the Work throughout performance and any required completed-operations or warranty period. All carriers shall be authorized to conduct business in Colorado.

33.01 Commercial General Liability
Commercial General Liability insurance shall cover premises and operations, independent contractors, products and completed operations, contractual liability, personal injury including death, and advertising liability, with minimum limits of $1,000,000 bodily injury per occurrence; $1,000,000 bodily injury aggregate; $1,000,000 property damage per occurrence; and $1,000,000 property damage aggregate. Coverage shall include explosion, collapse, and underground hazards when applicable to the Work.

33.02 Automobile Liability

Automobile Liability insurance covering owned, hired, and non-owned automobiles, as applicable, shall have minimum limits of $500,000 bodily injury per occurrence and $100,000 property damage per occurrence.

33.03 Workers' Compensation
Workers' Compensation insurance shall be maintained as required by Colorado law for all Contractor and Subcontractor employees performing Work, together with employers' liability coverage when required by the District or insurer.

33.04 Additional Insured
Westminster Public Schools, its Board of Education, officers, employees, and agents shall be included as additional insureds on the Contractor's Commercial General Liability coverage for ongoing and completed operations when commercially available and appropriate to the Work. Coverage shall be primary and noncontributory to District insurance to the extent commercially available.

33.05 Builder's Risk
When required by the solicitation or project-specific Contract Documents, the Contractor shall maintain Builder's Risk or installation-floater coverage on a replacement-cost basis for the Work, including materials in transit or storage when applicable, through the period specified by the District. Deductibles shall be the Contractor's responsibility unless otherwise agreed.

33.06 Professional Liability
When the Contractor or its Subcontractors provide design, engineering, surveying, or other professional services, the District may require professional liability/errors and omissions coverage in limits identified in the solicitation or Supplementary Conditions.

33.07 Pollution Liability
When the Work presents environmental or pollution risk, including asbestos, lead, mold, contaminated soil, hazardous-material abatement, or similar exposure, the District may require Contractor's pollution liability coverage in limits identified in the solicitation or Supplementary Conditions.

33.08 Umbrella or Excess
The District may require umbrella or excess liability coverage based on Project value, scope, or risk. Any such requirement shall be stated in the solicitation or Supplementary Conditions.

33.09 Certificates and Endorsements
Before commencing Work, the Contractor shall furnish certificates and, upon request, endorsements evidencing required coverage. Receipt or review by the District does not waive the Contractor's obligation to maintain compliant coverage. The Contractor shall provide notice of cancellation or material reduction to the extent required by the policy and applicable law.

33.10 Modification of Requirements
The District reserves the right to modify, waive, increase, or require additional insurance coverage or limits based on the nature, scope, and risk of the Work. Project-specific requirements control over this baseline when expressly stated.

GC 34.00 – SEPARATE CONTRACTS

The District may award separate contracts for other portions of the Project or for work at the same site. The Contractor shall cooperate and coordinate with separate contractors and District forces, afford reasonable opportunity for delivery and storage, and properly connect and coordinate its Work with theirs. If the Contractor's Work depends on the proper execution of work by others, the Contractor shall inspect the preceding work and promptly report defects or discrepancies before proceeding. Failure to report a reasonably observable condition may constitute acceptance of the condition for purposes of receiving the Contractor's Work.

GC 35.00 – SUBCONTRACTORS AND SUPPLIERS

The Contractor remains fully responsible for all Work performed by Subcontractors and suppliers.

35.01 Identification and Approval
The Contractor shall provide the District and Architect a list of proposed Subcontractors and major suppliers when requested and shall not substitute a listed key Subcontractor without prior District approval, which shall not be unreasonably withheld when the Contractor demonstrates legitimate cause.

35.02 Responsibility
The Contractor is responsible for acts and omissions of Subcontractors and persons directly or indirectly employed by them to the same extent as for persons directly employed by the Contractor.

35.03 Eligibility
The Contractor shall not knowingly engage a Subcontractor that is debarred, suspended, excluded, or otherwise ineligible to participate in an applicable federally funded transaction.

35.04 Final Listing
Before Final Payment, the Contractor shall furnish a final list of Subcontractors and major suppliers, including contact information and the general nature of Work or materials provided, when requested by the District.

35.05 No Contractual Relationship
Nothing in the Contract Documents creates a contractual relationship between the District and any Subcontractor or supplier.

GC 36.00 – RELATIONSHIP OF CONTRACTOR AND SUBCONTRACTORS

The Contractor shall bind each Subcontractor by written agreement to the applicable requirements of the Contract Documents.

36.01 Flow-Down
Each Subcontractor shall assume toward the Contractor the obligations and responsibilities that the Contractor assumes toward the District to the extent applicable to the Subcontractor's Work, including requirements concerning safety, insurance, schedule, changes, claims, confidentiality, background checks, site conduct, records, warranties, and correction of Work.

36.02 Payment
The Contractor shall pay Subcontractors and suppliers in accordance with applicable law and the terms of their agreements and shall not improperly withhold amounts received for their Work.

36.03 Verification
The District may require reasonable documentation that Subcontractors and suppliers have been timely paid and may contact them directly for verification. Such verification does not create an obligation by the District to pay them directly.

36.04 Claims
Subcontractor claims for additional cost or time shall be presented through the Contractor in sufficient time for the Contractor to comply with the notice and claim requirements of the Contract Documents.

36.05 No District Obligation
Nothing in this section creates a duty by the District to ensure payment of a Subcontractor or supplier except as required by applicable law.

GC 37.00 – CONTRACTORS' MUTUAL RESPONSIBILITY

When more than one contractor performs work on or adjacent to the Project, each contractor is responsible for coordinating its operations and avoiding damage to the work of others. The Contractor shall promptly resolve damage it causes to another contractor's work and shall protect the District from claims arising from such damage to the extent caused by the Contractor or persons for whom it is responsible.

GC 38.00 – CUTTING, PATCHING, AND EXCAVATING

The Contractor shall perform cutting, fitting, patching, and excavating necessary to make the Work fit together properly and integrate with existing construction and work of others. Structural members shall not be cut, drilled, altered, or modified without written approval of the Architect or Design Professional. Cutting and patching shall be performed by qualified personnel using methods and materials that restore affected construction to a condition equal to or better than the surrounding Work. Costs caused by defective, omitted, or improperly timed Work shall be borne by the responsible party.

GC 39.00 – CONTRACTOR PERSONNEL

The Contractor shall employ qualified, properly licensed or certified personnel and shall maintain discipline and good order at the Project site.

39.01 Conduct
Contractor personnel shall comply with District policies, procedures, security requirements, and standards of conduct while on District property. Personnel shall not fraternize inappropriately with students, disrupt District operations, or engage in harassment, threats, violence, illegal activity, or other conduct reasonably determined by the District to be unsafe or inappropriate.

39.02 Drug, Alcohol, Tobacco, and Nicotine Restrictions
Contractor personnel shall comply with District prohibitions concerning alcohol, illegal drugs, controlled substances, tobacco, nicotine, vaping, and smoking on District property. The Contractor is responsible for enforcing these restrictions among its personnel and Subcontractors.

39.03 Nondiscrimination
The Contractor shall comply with all applicable federal and state nondiscrimination and equal-employment requirements and shall not discriminate against employees or applicants on the basis of any status protected by law.

39.04 Removal
The Contractor shall promptly remove from District property any individual when reasonably requested by the District for safety, security, conduct, qualification, or operational reasons. Removal does not entitle the Contractor to additional compensation or time unless the request is arbitrary and materially affects the critical path.

39.05 Workers Without Authorization
The Contractor certifies, warrants, and agrees that it does not knowingly employ or contract with a worker without authorization who will perform Work under the Agreement and shall confirm the employment eligibility of all employees newly hired for employment in the United States to perform Work under the Agreement. The Contractor shall not knowingly employ or contract with a worker without authorization to perform Work under the Agreement or enter into a contract with a Subcontractor that fails to certify to the Contractor that the Subcontractor will not knowingly employ or contract with a worker without authorization to perform Work under the Agreement.

39.06 Background Checks
When Contractor or Subcontractor employees will work or are reasonably likely to work on District property, the Contractor shall be solely responsible, at its own expense, for conducting all required criminal background checks in accordance with applicable law and District requirements. The District will not conduct or independently review criminal background checks. The Contractor shall complete and submit the District's Criminal Records Check Certification Statement and shall maintain records supporting its certification. The District may require an updated certification or updated checks when reasonably necessary.

GC 40.00 – CLEANING AND SITE MAINTENANCE

The Contractor shall continuously maintain the Project site in a safe, orderly, and reasonably clean condition. Waste, debris, packaging, surplus materials, and rubbish generated by the Work shall be removed regularly. Before Final Completion, the Contractor shall perform final cleaning sufficient to leave the Work ready for occupancy and use, including cleaning surfaces, equipment, fixtures, glazing, hardware, and areas affected by construction. If the Contractor fails to perform required cleanup after notice, the District may perform or procure the cleanup and charge the cost to the Contractor.

GC 41.00 – USE OF PREMISES AND SITE SECURITY

The Contractor shall confine operations, storage, parking, staging, and access to areas authorized by the District and shall not unreasonably encumber District property. The Contractor shall secure the Project site, materials, tools, equipment, temporary openings, and access points. District facilities shall not be used for Contractor purposes except as expressly authorized. The Contractor shall comply with District directions concerning entrances, parking, identification, keys, access cards, signage, open flames, hot work, smoking, deliveries, and working hours.

GC 42.00 – DISTRICT OCCUPANCY AND PARTIAL USE

The District may occupy or use completed or partially completed portions of the Work when such use can occur without materially interfering with completion. Partial occupancy or use does not constitute Final Acceptance, waive correction obligations, or commence a warranty period unless expressly stated in a Certificate of Substantial Completion or other written document. Before partial occupancy, the parties shall reasonably document the condition of the area and responsibilities for security, utilities, maintenance, insurance, and remaining Work.

GC 43.00 – TEMPORARY OR TRIAL USE

Temporary or trial use by the District of equipment, systems, materials, or portions of the Work before Final Completion shall not constitute acceptance or commencement of warranty unless expressly agreed in writing. The Contractor shall cooperate with reasonable testing and trial use and shall remain responsible for defects attributable to materials, workmanship, installation, or failure to comply with the Contract Documents.

GC 44.00 – TESTING, STARTUP, COMMISSIONING, AND TRAINING

The Contractor shall perform and coordinate testing, startup, commissioning support, demonstrations, and training required by the Contract Documents.

44.01 Testing Plan

When required, the Contractor shall submit a written testing and startup plan identifying systems, prerequisites, responsible parties, procedures, documentation, and schedule.

44.02 Systems

Installed systems and equipment shall be tested as complete systems or in logical portions before concealment or acceptance as required. Testing shall be witnessed by the District, Architect, commissioning authority, or authority having jurisdiction when required.

44.03 Training

The Contractor shall provide qualified personnel, tools, instruments, manuals, and materials necessary to train District operations and maintenance personnel. Training shall occur before Final Completion unless otherwise approved.

44.04 Documentation

Test reports, startup records, commissioning documentation, training records, and required videos or electronic files shall be delivered as part of closeout.

GC 45.00 – LIQUIDATED DAMAGES FOR DELAY IN COMPLETION

When liquidated damages are identified in the solicitation, Scope of Work, Construction Agreement, Award Letter, or other project-specific Contract Document, completion of the Work within the time specified in the Agreement shall be considered a material requirement of the Agreement. If the Contractor fails to achieve the required completion milestone within the time established by the Contract Documents, including any extension of Contract Time authorized in writing by the District, the Contractor shall be liable to the District for liquidated damages in the amount specified in the applicable project-specific Contract Documents for each calendar day that elapses after the required completion date until the applicable completion milestone is achieved. The parties acknowledge that delay may cause the District to incur damages that are difficult to ascertain with certainty and that the amount specified as liquidated damages represents a reasonable estimate of the District's anticipated damages resulting from delay and is not intended as a penalty. The District may deduct liquidated damages from amounts otherwise due or to become due to the Contractor. Liquidated damages shall not be assessed for periods of delay for which the Contractor has received an authorized extension of Contract Time in accordance with the Contract Documents. Any term, condition, qualification, disclaimer, limitation, or exception contained in the Contractor's proposal, quotation, estimate, invoice, acknowledgment, subcontract, purchase document, standard terms and conditions, website, or other Contractor-generated document that purports to disclaim, limit, modify, or otherwise avoid the Contractor's liability for liquidated damages shall be void and shall not modify or supersede this provision unless the District expressly agrees to such modification in a written amendment or Change Order executed by an authorized District representative. Assessment or deduction of liquidated damages shall not relieve the Contractor of its obligation to complete the Work or of any other obligations under the Contract Documents.

GC 46.00 – SUBSTANTIAL COMPLETION, FINAL COMPLETION, AND FINAL PAYMENT

Completion and payment shall proceed in accordance with the following requirements and applicable Colorado law.

46.01 Substantial Completion

When the Contractor believes the Work or an agreed portion is substantially complete, it shall notify the District and Architect in writing and submit a comprehensive list of incomplete or corrective items. The Architect and District will inspect and, if appropriate, issue a Certificate or written determination of Substantial Completion identifying the date and responsibilities for security, maintenance, utilities, insurance, and completion of remaining items.

46.02 Punch List

The Contractor shall promptly complete all punch-list items within the period established by the District. The punch list is not an exhaustive list of the Contractor's obligations.

46.03 Final Inspection
After the Contractor represents that all Work and closeout requirements are complete, the District and Architect will conduct a final inspection. Deficiencies shall be corrected before Final Acceptance unless the District expressly accepts them subject to an agreed deduction or other resolution.

46.04 Closeout Documents
As a condition of Final Payment, the Contractor shall submit required record drawings, O&M manuals, warranties, training documentation, test and commissioning records, keys and access devices, final permits and certificates, Subcontractor and supplier lists, releases or affidavits, and other closeout documents required by the Contract Documents.

46.05 Final Settlement
When required by Colorado law, the District will publish or otherwise provide notice of final settlement and will administer timely claims in accordance with applicable statutory procedures.

46.06 Unpaid Claims
The District may withhold from Final Payment amounts reasonably necessary to protect against timely filed claims for labor, materials, supplies, or equipment until resolved in accordance with law.

46.07 Final Acceptance
Final Acceptance shall occur only upon written acceptance of the Work by an authorized District representative after the requirements for Final Completion have been satisfied. Occupancy, use, inspection, Architect certification, or payment shall not by itself constitute Final Acceptance.

46.08 Final Payment
Final Payment shall be made after Final Acceptance, completion of closeout, resolution of required statutory procedures, and receipt of a complete and accurate final Application for Payment, subject to Net 30 terms unless law requires otherwise.

46.09 No Waiver
Final Payment does not waive claims arising from unpaid obligations, defective or nonconforming Work, latent defects, warranties, fraud, misrepresentation, or other obligations that survive completion.

GC 47.00 – WARRANTIES ON PORTIONS OF THE WORK

The Contractor shall obtain and deliver all manufacturer, supplier, installer, and special warranties required by the Contract Documents. Unless a different commencement date is stated in the applicable warranty or Certificate of Substantial Completion, warranties shall commence on the date of Substantial Completion for the applicable Work. Warranty documents shall be assigned to or issued in favor of the District as appropriate and delivered before Final Payment. A special warranty does not reduce the Contractor's general correction, guarantee, or other obligations.

GC 48.00 – CONTRACTOR'S PROJECT GUARANTEE AFTER COMPLETION

The Contractor warrants that the Work will be performed in a first-class and workmanlike manner; will be new unless otherwise permitted; will be free from defects not inherent in the quality required; and will conform to the Contract Documents.

48.01 Correction Period
Unless a longer period is required by the Contract Documents, the Contractor shall correct defects in materials or workmanship that appear within one (1) year after Substantial Completion of the applicable Work.

48.02 Extended Warranties
When the Contract Documents require a warranty longer than the general correction period, the longer warranty governs for the covered item.

48.03 Warranty Inspections
The District may conduct warranty inspections at any time during an applicable warranty or correction period. For Work subject to the Contractor's one-year correction period, the District intends to conduct a warranty inspection approximately eleven (11) months after Substantial Completion. The Contractor shall participate in the inspection when requested and shall promptly investigate and correct covered deficiencies identified in writing in accordance with the Contract Documents. Failure of the District to conduct an inspection, identify a deficiency during an

inspection, or provide notice before expiration of a warranty or correction period shall not waive any right or remedy otherwise available to the District under the Contract Documents or applicable law.

48.04 District Remedy
If the Contractor fails to timely correct a covered deficiency after reasonable notice, the District may perform or procure the correction and recover the reasonable cost from the Contractor, without waiving other remedies.

GC 49.00 – KEYS, ACCESS DEVICES, CONTROLS, AND MISCELLANEOUS ITEMS
At closeout, the Contractor shall identify, account for, label, and deliver to the District all keys, access devices, control keys, adjustment tools, special wrenches, software credentials provided for District use, spare parts, attic stock, and other miscellaneous items required by the Contract Documents. The Contractor shall not retain District keys, credentials, or access devices after completion unless expressly authorized.

GC 50.00 – INDEMNIFICATION
To the fullest extent permitted by law, the Contractor shall indemnify and hold harmless Westminster Public Schools, its Board of Education, officers, employees, and agents from and against claims, damages, losses, liabilities, and expenses arising out of or resulting from the negligent acts or omissions, errors, willful misconduct, or breach of the Agreement by the Contractor or its employees, agents, Subcontractors, or representatives. Nothing in this provision shall require the District to indemnify the Contractor or any other party. This provision shall survive completion, expiration, or termination of the Agreement.

GC 51.00 – LABOR DISPUTES
The Contractor shall use reasonable lawful efforts to avoid or minimize disruption to the Project arising from labor disputes affecting the Contractor or its Subcontractors. The Contractor shall promptly notify the District of any actual or threatened labor dispute that may affect the schedule and shall provide a mitigation plan. Nothing in this section requires conduct prohibited by labor law or impairs rights protected by applicable law. A labor dispute does not excuse delay unless it qualifies for an extension under GC 25.00.

GC 52.00 – LIMITATION OF ACTIONS
Any limitation period applicable to claims arising from the Project shall be governed by Colorado law. Nothing in the Contract Documents shall shorten a statutory limitation or repose period applicable to the District unless expressly permitted by law and approved in writing by the District.

GC 53.00 – COLORADO PUBLIC WORKS REQUIREMENTS
The Contractor shall comply with Colorado public-works requirements applicable to the Project. Such requirements may vary depending upon the nature, funding, and scope of the Project and shall include the requirements set forth below to the extent applicable.

53.01 Colorado Labor
To the extent required by applicable Colorado law, the Contractor shall comply with all requirements concerning the employment of Colorado labor on public works projects, including the requirements of C.R.S. §§ 8-17-101 and 8-17-102, as amended. The Contractor shall be responsible for ensuring compliance by its Subcontractors and other persons performing Work subject to such requirements. Any waiver of an applicable Colorado labor requirement shall be made only as authorized by law and approved by the District.

53.02 Resident and Nonresident Bidders
To the extent applicable to the Project, the District shall apply the reciprocal resident-bidder requirements of Colorado law. A nonresident bidder from a state or foreign country that provides a bidding preference to its resident bidders may be subject to a comparable percentage disadvantage as required by applicable Colorado law. Nothing in this provision creates or shall be construed as creating a local-vendor preference or a general preference for vendors located within the geographic boundaries of Westminster Public Schools.

53.03 Federal Funding
When the Project is funded in whole or in part with federal funds, any Colorado labor or resident-bidder requirement that is inapplicable, prohibited, or required to be suspended because of federal law or funding requirements shall not apply to the extent of such conflict. The Contractor shall instead comply with all applicable federal labor, wage, domestic-preference, and other funding requirements identified in the Contract Documents.

53.04 Other Public Works Requirements

The Contractor shall comply with all other federal, state, and local public works requirements applicable to the Project, including requirements concerning labor, wages, bonds, retainage, final settlement, permits, licenses, and other statutory obligations, whether expressly stated in these General Conditions or incorporated into the Contract Documents by applicable law.

GC 54.00 – SALES AND USE TAX

Westminster Public Schools is exempt from applicable State of Colorado and local sales and use taxes to the extent provided by law. The District's Colorado tax exemption number is 98-03358. Proposed and Contract pricing shall not include taxes from which the District is exempt, and no amount paid to the Contractor shall include reimbursement for such taxes. The Contractor shall coordinate with the District and obtain any project-specific exemption certificate or documentation required by the Colorado Department of Revenue or other taxing authority. The Contractor remains responsible for taxes, fees, or assessments that are not subject to the District's exemption.

GC 55.00 – LIENS, CLAIMS, AND PAYMENT OF SUBCONTRACTORS

The Contractor shall keep the Project and District property free from liens, claims, and encumbrances arising from the Contractor's failure to pay for labor, materials, equipment, or services. To the extent liens are not legally available against public property, the Contractor shall nevertheless promptly resolve payment claims and protect the District from resulting loss. The District may require releases, affidavits, proof of payment, or other documentation before progress or Final Payment and may withhold amounts reasonably necessary to address claims as permitted by law.

GC 56.00 – DISTRICT INSPECTION AND AUDIT OF CONTRACTOR'S RECORDS

The Contractor shall maintain complete and accurate records sufficient to substantiate performance, charges, Change Orders, claims, allowances, unit-price Work, time-and-material Work, and other amounts paid or payable under the Agreement. Records subject to inspection may include accounting records, job-cost reports, estimates, estimating worksheets, Subcontractor and supplier proposals, bid tabulations, subcontracts, purchase orders, invoices, payroll records, equipment records, Change Order files, back-charge logs, discounts, rebates, credits, and other supporting documentation directly related to the Project. Upon reasonable notice, the District or its authorized representative may inspect, audit, and reproduce such records to the extent necessary to verify charges, claims, or compliance. Records shall be retained for six (6) years after Final Payment or longer if required by law, grant requirements, litigation hold, or the Contract Documents.

GC 57.00 – BACKGROUND CHECKS AND PREMISES ACCESS

When Contractor or Subcontractor personnel will work or are reasonably likely to work on District property, the Contractor shall comply with the District's criminal-record and premises-access requirements. The Contractor shall conduct required background checks at its expense, complete the District's Criminal Records Check Certification Statement, maintain supporting records, and ensure that personnel assigned to District property satisfy the eligibility standards stated in the certification and applicable law. The District may deny or revoke site access for safety, security, conduct, or compliance reasons. Failure to comply may result in removal of personnel, suspension of Work, termination, or other remedies.

GC 58.00 – CONTRACTOR SAFETY RESPONSIBILITIES

Safety of students, staff, visitors, workers, and the public is a material requirement of the Agreement. The Contractor has sole responsibility for the adequacy and enforcement of its safety program and for compliance by all Subcontractors.

58.01 Safety Program

Before commencing on-site Work, the Contractor shall provide its written safety program or site-specific safety plan when requested by the District. The Contractor shall ensure that Subcontractors are contractually obligated to comply with applicable safety requirements.

58.02 Safety Representative

The Contractor shall designate a qualified safety representative with authority to implement and enforce the Contractor's safety program and applicable laws. The District may require replacement of a representative who is demonstrably unqualified or ineffective.

58.03 Incident Reporting

The Contractor shall immediately notify the District of serious injuries, incidents, property damage, utility strikes, environmental releases, security incidents, or other significant events occurring on District property or related to the Project and shall provide a written incident report and corrective-action information within twenty-four (24) hours when reasonably practicable.

58.04 District Observation and Stop Work
The District may observe the Project for compliance with safety and security requirements. If the District observes an imminent danger or material threat to persons or property, it may direct an immediate stop to affected Work. The Contractor shall promptly correct the condition before resuming. District observation does not make the District responsible for Contractor safety obligations.

58.05 Prohibited Items and Conduct
Firearms, explosives not specifically authorized for the Work, illegal drugs, alcohol, tobacco, nicotine, vaping, harassment, violence, and other prohibited conduct are not permitted on District property except as expressly allowed by law and District policy. Knives or other cutting instruments carried or used as tools necessary for performance of the Work are permitted only when reasonably necessary for the Work and shall be used, secured, and stored in a safe and appropriate manner. Knives or other cutting instruments possessed or carried as weapons, or that are not reasonably related to performance of the Work, are prohibited. The Contractor shall communicate applicable restrictions to all Project personnel.

58.06 Housekeeping, Security, and Environmental Controls
The Contractor shall maintain safe housekeeping, secure materials and access, control dust, fumes and odors, protect indoor air quality, and comply with stormwater, wastewater, spill-prevention, and environmental requirements applicable to the Work.

58.07 Site Orientation
When required by the District or appropriate to Project risk, the Contractor shall conduct a site-specific orientation addressing school-site security, emergency procedures, logistics, prohibited conduct, safety expectations, and access restrictions before personnel begin Work.

58.08 Safety Records
The Contractor shall maintain safety-related records required by law or the Contract Documents and make Project-specific records available to the District upon reasonable request.

GC 59.00 – ASBESTOS, LEAD, AND OTHER REGULATED BUILDING MATERIALS

The Contractor shall comply with AHERA, EPA, CDPHE, OSHA, and other applicable requirements concerning asbestos, lead-based paint, and regulated building materials. Before disturbing existing building materials, the Contractor shall review environmental information made available by the District and coordinate with the District's designated representative. Any activity that may disturb known or suspected asbestos-containing material, lead-based paint, or other regulated material shall not proceed until authorized. The Contractor shall immediately report newly discovered or suspected regulated material and shall provide records of testing, abatement, disposal, and clearance when such Work is included in its scope.

GC 60.00 – ARCHITECT OR DESIGN PROFESSIONAL STATUS AND AUTHORITY

The Architect or Design Professional serves as the District's representative to the extent stated in the Contract Documents.

60.01 Authority
The Architect may observe the Work, review submittals, interpret design requirements, evaluate Applications for Payment, conduct completion inspections, and perform other duties assigned by the District. The Architect may act on behalf of the District only within authority granted by the District.

60.02 Interpretations and Recommendations
The Architect may make initial interpretations and recommendations concerning design and performance, but the District retains final contractual authority unless the Contract Documents expressly provide otherwise.

60.03 Inspections
The Contractor shall provide timely notice for inspections and observations required by the Contract Documents. Observation by the Architect does not constitute continuous inspection and does not relieve the Contractor of responsibility for quality, safety, or compliance.

60.04 Stop Work
The Architect may recommend or, when expressly authorized by the District, direct stoppage of Work reasonably necessary to address nonconforming Work or immediate safety concerns.

60.05 Means and Methods
The Architect is not responsible for construction means, methods, techniques, sequences, procedures, or safety precautions, which remain the Contractor's responsibility.

GC 61.00 – ORAL STATEMENTS
The written Contract Documents supersede oral statements, discussions, representations, or instructions concerning the Agreement. Oral statements do not modify the Contract Sum, Contract Time, Scope of Work, or other contractual requirement. The Contractor shall obtain written authorization before relying on a direction that it believes changes the Agreement.

GC 62.00 – PROJECT SIGNAGE
The Contractor shall provide Project signs only when required or approved by the District. No advertising, Contractor signage, banners, or promotional displays shall be installed on District property without prior written approval. Required safety, directional, regulatory, and emergency signage is permitted and shall be maintained throughout the Work.

GC 63.00 – HISTORICAL, ARCHAEOLOGICAL, OR CULTURAL DISCOVERIES
If the Contractor encounters artifacts, human remains, archaeological materials, historic features, or other items reasonably believed to have historical, archaeological, or cultural significance, it shall stop affected Work, protect the discovery from disturbance, and promptly notify the District. The Contractor shall not remove or disturb the item except as directed by the District and applicable authorities. Adjustments, if any, shall be addressed under the Change Order provisions.

GC 64.00 – ASSIGNMENT
The Contractor shall not assign, transfer, delegate, or otherwise dispose of the Agreement or any material right or obligation under it without the District's prior written consent. District consent to an assignment does not release the Contractor from liability unless the District expressly agrees in writing. The District may assign the Agreement to a successor governmental entity or as otherwise permitted by law upon written notice when such assignment does not materially increase the Contractor's obligations.

GC 65.00 – TIME IS OF THE ESSENCE
Time is of the essence with respect to the Contractor's performance of the Work and achievement of all dates and milestones identified as material in the Contract Documents. The Contractor shall promptly notify the District of circumstances that may affect timely performance and shall take reasonable steps to mitigate delay.

GC 66.00 – DISPUTES
The parties shall attempt in good faith to resolve disputes at the Project level through authorized representatives before initiating litigation, unless immediate relief is necessary to protect legal rights, persons, property, or the Project. The Contractor shall continue performance during a dispute unless directed otherwise by the District or unless continued performance would be unsafe or unlawful. No provision requires the District to submit to binding arbitration or other binding extrajudicial dispute resolution prohibited by C.R.S. § 22-1-135. Any unresolved legal action shall be governed by GC 68.00.

GC 67.00 – SURVIVAL
Any provisions of the Agreement that by their nature are intended to survive completion, expiration, or termination shall remain in effect, including, as applicable, obligations relating to confidentiality, records and audit, indemnification, intellectual property, warranties, correction of Work, payment obligations, claims, and other continuing rights or responsibilities.

GC 68.00 – GOVERNING LAW, VENUE, AND GOVERNMENTAL IMMUNITY
The Agreement shall be governed by and construed in accordance with the laws of the State of Colorado. Any legal action arising from or related to the Agreement shall be brought in a court of competent jurisdiction located in Adams County, Colorado, unless otherwise required by law. Nothing in the Agreement shall be construed or interpreted as a waiver, express or implied, of any immunity, right, benefit, protection, or other provision of the Colorado Governmental Immunity Act, C.R.S. §§ 24-10-101 et seq., or any other immunity or protection afforded to Westminster Public Schools under applicable law.

GC 69.00 – PROHIBITED PUBLIC SCHOOL CONTRACT TERMS

Notwithstanding anything to the contrary contained in the Contractor's response, subcontract, proposal, quotation, form, or any other document, no provision of the Agreement shall be interpreted or enforced to the extent prohibited by C.R.S. § 22-1-135 or other applicable law governing public school contracts. Prohibited provisions include, as applicable, terms requiring the District to indemnify or hold harmless another party; requiring the District to submit to binding arbitration or other binding extrajudicial dispute resolution; improperly limiting another party's liability for bodily injury, death, or property damage resulting from negligence or willful misconduct; or waiving, altering, or limiting statutory protections that may not lawfully be waived by the District.

GC 70.00 – ENTIRE AGREEMENT, SEVERABILITY, NO WAIVER, AND HEADINGS

The Contract Documents constitute the entire Agreement concerning the Work and supersede prior or contemporaneous oral or written negotiations and representations concerning the same subject, except documents expressly incorporated into the Agreement. Modifications must be in writing and authorized by the District. If any provision is held invalid or unenforceable, the remaining provisions shall remain in effect to the fullest extent permitted by law. Failure by the District to insist upon strict performance or to exercise a right or remedy does not waive that right, remedy, or any later breach. Headings are for convenience only and do not limit or expand the meaning of the provisions. Rights and remedies under the Agreement are cumulative unless expressly stated otherwise.